

Court No. - 21

Case :- WRIT - C No. - 1058 of 2019

Petitioner :- Ashok Kumar

Respondent :- Uttar Pradesh Power Shakti Bhawan And 4 Others

Counsel for Petitioner :- Neeraj Chandra Srivastava, Alok Kumar Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Pradeep Kumar Singh Baghel, J.
Hon'ble Pankaj Bhatia, J.

Copy of the assessment produced by Sri Narendra Kumar Tiwari, learned counsel for the Power Corporation, is taken on record.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Narendra Kumar Tiwari, learned counsel appearing on behalf of respondents no. 2, 3 & 4.

The petitioner is aggrieved by the incorrect billing by the Power Corporation. Previously, the petitioner has preferred Civil Misc. Writ petition No. 33952 of 2018 which was disposed off by this Court on the ground of alternative remedy.

It is stated that in terms of the Clause 6.5 of the Electricity Supply Code, 2005, the petitioner had approached the Executive Engineer, who had made an assessment.

The grievance of the petitioner is that the manner of assessment has not been furnished to him.

Sri Narendra Kumar Tiwari, learned counsel for the respondents no. 2, 3 and 4 has received the instructions from the Executive Engineer alongwith

the assessment of the petitioner. A copy of the said assessment be supplied to the learned counsel for the petitioner during the course of the argument.

In view of the above, the petitioner is permitted to withdraw this petition leaving it open to him to challenge the said assessment, if not satisfied with the same.

The writ petition stands disposed off.

Order Date :- 11.1.2019

Puspendra